COMMONWEALTH OF MASSACHUSETTS
SUPREME JUDICIAL COURT FOR SUFFOLK COUNTY

No. SJ-2019-0259

MASSACHUSETTS COALITION FOR THE HOMELESS, et al.,
Plaintiffs/Petitioners,
v.
CITY OF FALL RIVER, et al.,
Defendants/Petitioners

On Joint Petition for Transfer from Bristol Superior Court Civil Action No. 1973-CV-00299

JOINT PETITION FOR TRANSFER, PURSUANT TO G.L. c. 211, § 4A, LAST PARAGRAPH, OF COUNT 1 OF THE VERIFIED COMPLAINT IN BRISTOL SUPERIOR COURT CIVIL ACTION 1973-CV-00299 CONCERNING THE FACIAL CONSTITUTIONALITY OF G.L. c. 85, § 17A

Joseph I. Macy, BBO # 312520
Corporation Counsel
Gary Howayeck, BBO # 630053
Assistant Corporation Counsel
City of Fall River
One Government Center, Room 627
Fall River, MA 02722
508-324-2000
jmacy@fallriverma.org

Ruth A. Bourquin, BBO # 552985
Jessica Lewis, BBO # 704229
American Civil Liberties Union Foundation of Massachusetts
211 Congress Street, Boston, MA 02110
617-482-3170 ext. 348
rbourquin@aclum.org;
jlewis@aclum.org
David Himelfarb, BBO # 649596
Stesha Emmanuel, BBO # 682293
Rachel E.D. Churchill, BBO # 675673
Quincy Kayton, BBO # 696797
McCarter & English, LLP
265 Franklin Street, Boston, MA 02110
617-449-6511
semmanuel@mccarter.com

Plaintiffs and Defendants City of Fall River and Albert Dupere, in his official capacity as Chief of the Fall River Police Department, (hereafter collectively referred to as "Fall River Defendants"), by and through their counsel, hereby respectfully and jointly request that this Honorable Court, or a Single Justice thereof,[1] exercise the discretionary authority conferred by the last paragraph of G.L. c. 211, § 4A, to transfer from the Superior Court of Bristol County to this Court the question raised by Count 1 of the Plaintiffs' Verified Complaint as to the constitutionality of G.L. c. 85, § 17A ("Section 17A"). As described more fully below, the parties request that the Supreme Judicial Court determine whether Section 17A violates the First Amendment to the United States Constitution, made applicable to states and localities by the Fourteenth Amendment, and Article 16, as amended, of the Declaration of Rights.

Legal and Procedural Background

Plaintiffs have challenged the constitutionality of Section 17A as an impermissible restriction on the free speech guarantees of the First Amendment

[1] This Court has made clear that the Single Justice has jurisdiction to decide this type of petition and that normally the question of a transfer will be decided by the Single Justice who may then reserve and report the matter to the full Court. *Borman v. Borman*, 378 Mass. 775, 784 (1979). See also *Blue Cross of Mass v. Commissioner of Ins.*, 397 Mass. 674, 676 n.5 (1986),

and Article 16.[2] Count 1 of the Verified Complaint seeks a declaration that Section 17A is unconstitutional on its face.

Section 17A, with emphases added, provides:

> Whoever, *for the purpose of soliciting any alms, contribution or subscription or of selling any merchandise*, **except newspapers**, *or ticket of admission to any game, show, exhibition, fair, ball, entertainment or public gathering*, signals a moving vehicle on any public way or causes the stopping of a vehicle thereon, or accosts any occupant of a vehicle stopped thereon at the direction of a police officer or signal man, or of a signal or device for regulating traffic, shall be punished by a fine of not more than fifty dollars. Whoever sells or offers for sale **any item except newspapers** within the limits of a state highway boundary **without a permit** issued by the department shall for the first offense be punished by a fine of fifty dollars and for each subsequent offense shall be punished by a fine of one hundred dollars. Notwithstanding the provisions of the first sentence of this section, on any city or town way which is not under jurisdiction of the department, the **chief of police of a city or town may issue a permit to nonprofit organizations to solicit on said ways** in conformity with the rules and regulations established by the police department of said city or town.

Plaintiffs Massachusetts Coalition for the Homeless, John Correira, and Joseph Treeful filed the Verified Complaint with the Superior Court on March 29, 2019, including a request for preliminary injunctive relief to protect against further

[2] A copy of the Verified Complaint in Bristol Superior Court Civil Action No. 1973-CV-00299 is attached hereto as Exhibit A. Recently, Plaintiffs filed a Notice of Partial Voluntary Dismissal, dismissing Count 2, any claims against Mr. Dupere in his individual capacity, and all claims against Defendants Bernier, Gouveia, Smith, Pavao, and Amaral. Count 1 as stated against the City of Fall River, Mr. Dupere in his official capacity, and Mr. Quinn in his capacity as Bristol County District Attorney is therefore the remaining claim in the case.

enforcement of Section 17A. After briefing, a hearing on that request was held on April 9, 2019. That same day, the District Attorney of Bristol County agreed not to enforce Section 17A during the pendency of this action and agreed to dismiss past and any future charges that might issue. As a result, Plaintiffs orally withdrew their request for a preliminary injunction against the District Attorney. The Superior Court (Yessayan, J.) granted preliminary injunctive relief against all defendants other than the District Attorney on April 17, 2019. A copy of the Memorandum of Decision is attached as Exhibit B.

Contemporaneous with the filing of the Verified Complaint, Plaintiffs notified the Office of the Attorney General of their challenge to the constitutionality of Section 17A. That Office declined to intervene in the case to defend the constitutionality of the Statute. On May 17, 2019, however, the Office of the Attorney General entered an appearance as counsel for the District Attorney for Bristol County. And on May 31, 2019, the Office of the Attorney General, acting as counsel for the District Attorney, filed the "Commonwealth's Notice of Consent to the Entry of Judgment on Count 1 of Complaint" in which the "Commonwealth acknowledge[d] that the statute at issue in this case, G.L. c. 85, § 17A is unconstitutional as a content-based regulation." A copy of the Notice is attached as Exhibit C.

On June 10, 2019, the Superior Court granted the joint motion of Plaintiffs and the Fall River Defendants to stay further proceedings in the Superior Court pending a decision on this Petition and any ruling on the merits by this Court.

Reasons for the Request for Transfer

This Court has discretionary authority to transfer Count 1 of the Verified Complaint to itself pursuant to G.L. c. 211, § 4A, last paragraph. G.L. c. 211, § 4A, last paragraph, provides: "The supreme judicial court may also direct any cause or matter to be transferred from a lower court to it in whole or in part for further action or directions, and in case of partial transfer may issue such orders or directions in regards to the part of such cause or matter not so transferred as justice may require." A decision whether to transfer a case or part of a case to this Court is a discretionary one. *See Beres v. Board of Registration of Chiropractors*, 459 Mass. 1012, 1013 (2011); *Callahan v. Board of Bar Overseers*, 417 Mass. 516, 519 (1994). The parties to this Petition respectfully suggest that this is an appropriate case for the Court to exercise that discretion.

There is uncertainty throughout the Commonwealth concerning application and the constitutionality of Section 17A, and a ruling would give much-needed clarity concerning the fundamental constitutional rights at issue, namely the right to peacefully request charity from others. At oral argument on April 9, 2019, the

parties and the Superior Court discussed the fact that, given that the constitutionality of a state statute is at issue and is potentially being enforced by municipalities other than Fall River, an early appellate ruling on the constitutionality of Section 17A – which would apply statewide – may be appropriate. The wisdom of such an approach was highlighted by the fact that counsel for the defendants in this action have indicated, including to the Superior Court, that they would not be inclined to appeal a decision adverse to them with regard to the constitutionality of Section 17A. As a result, if the issue is decided in the first instance by the Superior Court and in the Plaintiffs' favor, the constitutional issue in this case may never reach the appellate court—leaving residents of the Commonwealth with ongoing lack of clarity as to the law in this important area concerning fundamental constitutional rights.

Since issuance of the preliminary injunction motion, at least one other municipality has asserted that, in fact, it is enforcing the Statute and does not intend to desist unless and until a judicial ruling directly applicable to that particular municipality is issued. *See* Exhibit D attached ("Mayor: Brockton will enforce panhandling laws unless judge says otherwise," Brockton Enterprise (April 21, 2019)).[3]

[3] Available at https://www.enterprisenews.com/news/20190421/mayor-brockton-will-enforce-panhandling-laws-unless-judge-says-otherwise.

Due to the nature of the lives of persons most affected by the continued enforcement of this statute across the Commonwealth, it is unlikely that its constitutionality can timely be challenged in multiple lawsuits in multiple locations. Reliance on piecemeal litigation would leave an important constitutional right dependent on the ability of persons experiencing homelessness in multiple municipalities to have the time, resources, and legal acumen to find pro bono counsel willing to challenge this statute. In contrast, a prompt ruling with statewide effect from this Court would be more consistent with the well-established principle that "[t]he loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury." *Elrod v. Burns*, 427 U.S. 347, 373 (1976).

Because Section 17A is applicable throughout the Commonwealth, all municipalities, state and local police departments, and prosecutors are in need of clarity with regard to their constitutional obligations. And all residents of the Commonwealth seeking to exercise their rights of expression near public ways, including but not limited to those seeking funds for their own support, are in need of clarity as to the scope of those rights. Pursuant to G.L. c. 231A, § 1, the Supreme Judicial Court has concurrent jurisdiction with the Superior Court over declaratory judgment actions.

The parties to this Petition therefore respectfully request that the Court exercise its discretion to transfer a decision on Count 1 to itself pursuant to G.L. c. 211, § 4A, last paragraph so as promptly to remove – on a statewide basis – uncertainty with regard to the fundamental constitutional rights and obligations that are at issue and which might otherwise continually evade appellate review. The parties respectfully suggest that such a transfer is more efficient than other potential alternatives for obtaining an appellate ruling in the first instance, including a Report by the Superior Court to the Appeals Court pursuant to Mass. R. Civ. P. 64, which might need to be coupled with a joint request for direct appellate review pursuant to Mass. R. App. P. 11. Prompt transfer will minimize legal expenses for all parties, preserve Superior Court resources, result in definitive clarification of this statewide law at the earliest opportunity, and determine the rights of the Commonwealth's most vulnerable citizens who face threats to their liberty for exercising a fundamental right, as well as the legal responsibilities of police and other government officials.

Count 1 of the Verified Complaint raises a pure question of law: is Section 17A of G.L. c. 85 facially unconstitutional? Hence, no fact-finding will be required by this Court. In fact, in order to expedite matters, the parties to this Petition have agreed to a succinct statement of facts that could be used as the basis for a ruling

on the facial constitutionality of Section 17A. That agreed statement of facts is attached to this Motion as Exhibit E.

None of the defendants are appealing the preliminary injunction order and decision, so this Petition for Transfer is not an attempt to obtain interlocutory review of the preliminary injunction. *Contrast Albano v. Jordan Marsh*, 367 Mass. 651 (1975).

Conclusion

For the foregoing reasons, the Plaintiffs and the Fall River Defendants respectfully request that this Court grant the request for a transfer of the question of the constitutionality of Section 17A pursuant to G.L. c. 211, § 4A, last paragraph, and determine a briefing schedule for the question to be heard by the full Court.

Respectfully submitted,

On behalf of the City of Fall River and Police Chief Albert Dupere, in his official capacity,

Joseph I. Macy
Corporation Counsel
BBO # 312520
jmacy@fallriverma.org

Gary Howayeck
Assistant Corporation Counsel
BBO # 630053
City of Fall River
One Government Center, Room 627
Fall River, MA 02722
508-324-2000

On behalf of the Plaintiffs Massachusetts Coalition for the Homeless, John Correira, and Joseph Treeful,

Ruth A. Bourquin, BBO # 552985
rbourquin@aclum.org
Jessica Lewis, BBO # 704229
jlewis@aclum.org
American Civil Liberties Union
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Quincy Kayton, BBO # 696797
McCarter & English, LLP
265 Franklin Street
Boston, MA 02110
semmanuel@mccarter.com
617-449-6511

CERTIFICATE OF SERVICE

I, Ruth A. Bourquin, hereby certify that on this 21st day of June, 2019, I caused a copy of Plaintiffs and Defendants City of Fall River and Albert Dupere's Joint Petition for Transfer and all accompanying exhibits to be served by email and U.S. mail service, first class postage prepaid, on Timothy J. Casey, Assistant Attorney General, One Ashburton Place, Boston, Massachusetts 02108.

DATED: June 21, 2019

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Ruth A. Bourquin